# LAWS2100 Jurisprudence
# LAWS8005 Theories of Law and Justice

Dr Andrea Dolcetti

## Week 3 – Legal Positivism



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## H.L.A. Hart's theory of law

- Law as the union of primary and secondary rules

## Hans Kelsen's theory of law

- Law as a coercive, normative order that regulates its own creation, application and execution

## What is Legal Positivism?

- Legal positivism as a general theory of law
- Legal positivism as a methodology
- Legal positivism as a political theory of law

# A fresh start

"In the last three chapters we have seen that, at various crucial points, **the simple model of law as the sovereign's coercive orders** failed to reproduce some of the **salient features of a legal system**."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012, 79)

"The last three chapters are therefore the record of a failure and there is plainly need for a fresh start. Yet the failure is an instructive one, worth the detailed consideration we have given it, because **at each point where the theory failed to fit the facts** it was possible to see at least in outline **why it was bound to fail and what is required for a better account**."

(Ibid, 80)

# The idea of obligation

"…the theory of law as coercive orders, notwithstanding its errors, started from the perfectly correct appreciation of the fact that **where there is law, there human conduct is made in some sense non-optional or obligatory**."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 82

Let's revisit the "gunman situation":

According to Hart, "[t]here is a difference, **yet to be explained**, between the assertion that someone *was obliged* to do something and the assertion that he *had an obligation* to do it."

(Ibid, 82)

# The idea of a rule

***Habits*** and ***rules*** share one element: we can observe a pattern/convergence of behaviour…

However, according to Hart, there are three salient differences:

1. Deviations from a rule are met with *criticisms*
2. The rule is regarded as a *good reason* for making such criticism
3. (Social) rules have an *internal aspect* ("a **critical reflective attitude** to certain patterns of behaviour **as a common standard**" – see CL, 57)

"…**habits** are not 'normative': they **cannot confer rights or authority on anyone**."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 60

# A *set* of primary rules of obligation

According to Hart, a simple social structure of primary rules has *three main defects*:

- It is uncertain
- It has a static character
- It is inefficient

"The remedy for each of these three main defects in this simplest form of social structure consists in **supplementing the *primary* rules of obligation with *secondary* rules** which are rules of a different kind."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 94

# Secondary rules as remedies

- Uncertainty → Rule of recognition
- Static quality → Rules of change
- Inefficiency → Rules of adjudication

"If we stand back and consider the structure which has resulted from the combination of primary rules of obligation with the secondary rules of recognition, change and adjudication, it is plain that **we have here not only the heart of a legal system, but a most powerful tool** for the analysis of much that has puzzled both the jurist and the political theorist."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 98

# The foundations of a *legal system*

"Wherever such a rule of recognition is accepted, **both private persons and officials are provided with authoritative criteria for identifying primary rules of obligation**. The criteria so provided may, as we have seen, take any one or more of a variety of forms: these include reference to an authoritative text; to legislative enactment; to customary practice; to general declarations of specified persons, or to past judicial decisions in particular cases."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 100

→ The existence of a rule of recognition is *shown* in the way in which primary rules are identified (**the RoR is manifest in a *general practice***)

# Hart on legal validity

"To say that a given rule is valid is to recognize it as passing all the tests provided by the rule of recognition and so as a rule of the system. We can indeed simply say that **the statement that a particular rule is valid means that it satisfies all the criteria provided by the rule of recognition**."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 103

- Validity and membership (vis-à-vis a *system* of rules)
- Ultimacy and supremacy of the rule of recognition (CL, 105-107)
- Is the rule of recognition (legally) valid?

# The “validity” of the rule of recognition

“No such question can arise as to the validity of **the** very **rule of recognition** which provides the criteria; it **can neither be valid nor invalid but is simply accepted as appropriate for use in this way**. To express this simple fact by saying darkly that its validity is ‘assumed but cannot be demonstrated’, is like saying that we assume, but can never demonstrate, that the standard metre bar in Paris which is the ultimate test of the correctness of all measurement in metres, is itself correct.”

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 109

# Hart on the existence of a legal system

"There are therefore **two minimum conditions necessary and sufficient for the existence of a legal system**. On the one hand, **those rules of behaviour which are valid according to the system's ultimate criteria of validity** must be generally obeyed, and, on the other hand, **its rules of recognition specifying the criteria of legal validity and its rules of change and adjudication** must be effectively accepted as common public standards of official behaviour by its officials."

H.L.A. Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 109

# Hart on international law

Kelsen and many modern theorists insist that, like municipal law, international law possesses and indeed must possess a 'basic norm', or what we have termed a rule of recognition […] The opposed view is that this analogy of structure is false: **international law simply consists of a set of separate primary rules of obligation** which are not united in this manner. (CL, 233)

For Hart, there are analogies between international law and municipal law, in terms of function and content (principles, concepts, and methods). However, their form/structure is different.

# Hans Kelsen (1881 – 1973)



Born in Prague in 1881

Studied law at the University of Vienna

Professor at the University of Vienna (1919)

Austrian Constitution (1920)

Professor at the University of Cologne (1930)

Forced to move to Switzerland in 1933

Forced to move to the US in 1940

Professor at the University of California, Berkeley (1945)

The Pure Theory of Law - *Stanford Encyclopedia of Philosophy*

Robert Walter (one of the directors of the Hans Kelsen Institute in Vienna) included a new bibliography of Kelsen's works in his *Hans Kelsen: Ein Leben im Dienste der Wissenschaft* (Vienna: Manz, 1985), 27–107.

| | | Total | English |
|---|---|---|---|
| 1. | Constutional Law | 92 | 2 |
| 2. | International Law | 106 | 66 |
| 3. | Legal Theory | 96 | 38 |
| 4. | Political Theory | 41 | 8 |
| 5. | Social Theory | 18 | 7 |
| 6. | Theory of Justice | 24 | 15 |
| 7. | Personalia | 21 | 3 |
| 8. | Miscellaneous | 18 | 2 |

# Kelsen's key publications (selected)

- Das Problem der Souveränität und die Theorie des Völkerrechts (1920)
- Reine Rechtslehre (1934) – translated into English as *Introduction to the Problems of Legal Theory* in 1992
- Law and Peace in International Relations - The Oliver Wendell Holmes Lectures 1940-1941 (1942)
- Peace Through Law (1944)
- General Theory of Law and State (1945)
- What is Justice? (1957)
- The Law of the United Nations (1950)
- Foundations of Democracy (1955)
- Reine Rechtslehre (2nd edition, 1960)
- Essays in Legal and Moral Philosophy (Weinberger sel., Heath trans.), Dordrecht 1973
- Allgemeine Theorie der Normen (ed. Ringhofer and Walter, 1979) – translated into English as *General Theory of Norms* in 1990

# Kelsen's *Reine Rechtslehre*

Stanley Paulson distinguishes four phases in the development of Kelsen's pure theory of law:

Kelsen's Pure Theory of Law was first published in 1934 as *Reine Rechtslehre*; **a revised edition was published in 1960**. The second edition was translated into French in 1962 as *Théorie Pure du Droit*; into English in 1967, as *The Pure Theory of Law*

- a constructivist phase, from 1911 to about 1920;
- a strong neo-Kantian phase, from about 1920 to the mid-1930s;
- a weak neo-Kantian phase, from the late 1930s to 1960; and
- a skeptical, or empiricist, phase, from 1960 onwards.

# The Pure Theory of Law (2nd edition)

## Chapters

- Law and Nature
- Law and Morals
- Law and Science
- The Static Aspect of Law
- **The Dynamic Aspect of Law**
- Law and State
- State and International Law
- Interpretation

# Kelsen on the nature of law

- Law is – according to the Pure Theory of Law – **by its very nature** a definite type of *norm*. (p. 1)
- The law is a *coercive* order (p. 1)
- It is a peculiarity of the law that it regulates its own creation, application and execution (p. 5)

→ What is, e.g., the difference between the command of a gangster to give him a certain sum of money and the command of a tax officer which has the same subjective meaning as the former. The answer is, that **the command of the tax officer is authorized by an objectively valid legal norm**, whereas the command of the gangster is not. (p. 6)

→ The search for the reason for the validity of the legal norms thus leads to the insight into **the hierarchal structure of a legal order** (p. 6)

# Kelsen on legal validity

- What constitutes the unity of a multitude of norms?
- Why does a certain norm belong to a certain order?

- Why is a norm valid – what is the reason for its validity?
  - For Kelsen if a norm is valid, then it is binding
  - The validity of a norm cannot be a fact
  - Only a competent authority can create a valid norm
  - Chain of validity and the historically first constitution
  - The basic norm as a transcendental-logical presupposition

# Hart's rule of recognition vs Kelsen's *Grundnorm*

For Hart the existence of a rule of recognition is a complex, empirical question of fact. For Kelsen, the basic norm is a "juristic hypothesis", a "postulated ultimate rule", a "fiction".

For Kelsen, a jurist/theorist must presuppose the validity of the basic norm. For Hart, the rule of recognition is neither valid, nor invalid.

Kelsen's basic norm has always the same content ("who laid down the first constitution ought to be obeyed"). For Hart, the rules of recognition in different jurisdictions may well have different content.

"One reason for using the expression 'rule of recognition' instead of a 'basic norm' is to avoid any commitment to Kelsen's view of the conflict between law and morals." (CL, 293)

# Kelsen's pure theory of law as a theory of positive law

"The pure theory of law is a theory of positive law; a general theory of law, not a presentation or interpretation of a special legal order. **From a comparison of all the phenomena which go under the name of law, it seeks to discover the nature of law itself, to determine its structure and its typical forms**, independent of the changing content which it exhibits at different times and among different peoples. In this manner it derives the fundamental principles by means of which any legal order can be comprehended. **As a theory, its sole purpose is to know its subject. It answers the question of what the law is, not what it ought to be**. The latter question is one of politics, while the pure theory of law is science."

Hans Kelsen, 'The Pure Theory of Law and Analytical Jurisprudence' (1941) 55(1) *Harvard Law Review* 44

# The Pure Theory of Law and Analytical Jurisprudence

*The Pure Theory of Law* is a theory of *positive* law, not of a definite legal order, but of the law in general. **It is a general theory of law**. As such it is the most consistent version of that school of jurisprudence which is called *legal positivism* because it considers as "law" only *positive* law and refuses to recognize as law any other normative social order even if, in the usage of language, it is called "law", as e.g. so-called "natural law". (p. 1)

As far as the relationship between law and justice, and formalism is concerned, **there is no essential difference between *analytical jurisprudence* (the founder of which is John Austin in his famous *Lectures on Jurisprudence*) and the Pure Theory of Law**. (p. 4)

# What is legal positivism?

According to Leslie Green and Tom Adams (see the 'Legal Positivism' entry in the *Stanford Encyclopedia of Philosophy*):

**Legal positivism is the thesis that the existence and content of law depends on social facts and not on its merits.**

According to John Austin (1790 – 1859):

"The existence of law is one thing; its merit and demerit another. Whether it be or be not is one enquiry; whether it be or be not conformable to an assumed standard, is a different enquiry."

J. Austin, *The Province of Jurisprudence Determined* (Wilfrid E. Rumble (ed.), Cambridge University Press, 1995) 157

# Hart on Legal Positivism

"Here we shall take Legal Positivism to mean the simple contention that **it is in no sense a necessary truth that laws reproduce or satisfy certain demands of morality**, though in fact they have often done so."

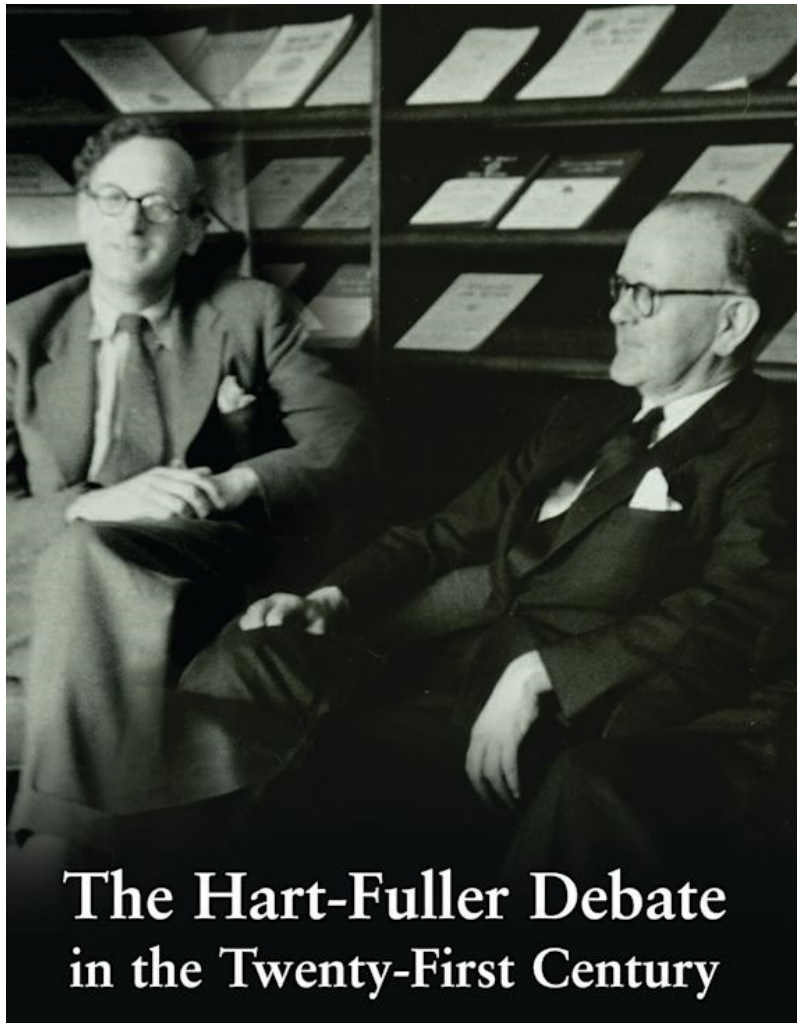
(H.L.A. Hart, *The Concept of Law*, OUP, 1994 [1961], pp. 185-186)

My account is *descriptive* in that it is **morally neutral and has no justificatory aims**: it does not seek to justify or commend on moral or other grounds the forms and structures which appear in my general account of law, though a clear understanding of these is, I think, an important preliminary to any useful moral criticism of law.

(H.L.A. Hart, *The Concept of Law*, OUP, 1994 [1961], p. 240)

# The Hart-Fuller Debate

- Harvard Law Review, Vol 71, 1958
- H.L.A. Hart (1907 – 1992), ‘Positivism and the Separation of Law and Morals’
- Lon Fuller (1902 – 1978), ‘Positivism and Fidelity to Law – A Reply to Professor Hart’
- H.L.A. Hart, *The Concept of Law*, 1961
- L. Fuller, *The Morality of Law*, 1964
- Peter Cane (ed), *The Hart-Fuller Debate in the Twenty-First Century*, Hart Publishing, 2010



# Jeremy Bentham and John Austin

"…**Bentham and Austin** were not dry analysts fiddling with verbal distinctions while cities burns, but **were the vanguard of a movement which laboured with passionate intensity and much success to bring about a better society** and better laws."

(H.L.A. Hart, 'Positivism and the Separation of Law and Morals', *Harvard Law Review*, LXXI, 1958, pp. 596)

According to Hart the Utilitarians insisted on the separation of law and morals, but…

- They never denied that many legal rules mirror moral rules/principles (as a matter of historical fact)
- Bentham never denied that moral principles might become part of a legal system thanks to explicit legal provisions (see, for example, some constitutional provisions)

# Two simple things

"What both Bentham and Austin were anxious to assert were the following two simple things: first, in the absence of an expressed constitutional or legal provision, **it could not follow from the mere fact that a rule violated standards of morality that it was not a rule of law**; and, conversely, **it could not follow from the mere fact that a rule was morally desirable that it was a rule of law**."

(H.L.A. Hart, 'Positivism and the Separation of Law and Morals', *Harvard Law Review*, LXXI, 1958, pp. 599)

# The utilitarian tradition in jurisprudence

According to Hart, the utilitarian tradition in jurisprudence has defended the following three doctrines:

1. **the separation between law and morals**
2. the important truth that a purely analytical study of legal concepts, a study of the meaning of the distinctive vocabulary of the law, was as vital to our understanding of the nature of law as historical or sociological studies (though of course it could not supplant them)
3. the famous imperative theory of law

(1), (2), and (3) are separate doctrines/claims – **they are not a package**

# Is vs. Ought

- **Law as it is** vs. **Law as it ought to be**
- This is a key distinction defended by Bentham, Austin, and Hart
- Yet, for some legal philosophers this sharp distinction is intellectually misleading and/or practically dangerous

Hart identifies three lines of criticism:

- Law and morality – in relation to laws and/or a legal system
- Legal positivism and formalism in adjudication
- The practical problem of the existence of morally evil laws (see, e.g., the Nazi regime)

# Five meanings of ‘positivism’

Hart identifies five meanings of the term ‘positivism’ in the context of jurisprudence:

1. the contention that laws are commands of human beings
2. the contention that there is no necessary connection between law and morals, or law as it is and law as it ought to be
3. the contention that the analysis (or study of the meaning) of legal concepts is (a) worth pursuing and (b) to be distinguished from historical inquiries, sociological inquiries, and from the criticism/appraisal of law
4. the contention that a legal system is a “closed logical system” in which correct legal decisions can be deduced from predetermined legal rules by logical means alone
5. the contention that moral judgments cannot be established or defended, as statements of facts can, by rational argument, evidence, or proof ("noncognitivism" in ethics)

# Different positivist theories of law

- **Bentham** and **Austin** held the views expressed in (1), (2), and (3), but not in (4) and (5)
- **Kelsen** held the views expressed in (2), (3), and (5), but not those in (1) and (4)

H.L.A. Hart, 'Positivism and the Separation of Law and Morals', *Harvard Law Review*, LXXI, 1958, footnote 25 at pp. 601-602

H.L.A. Hart, *The Concept of Law*, OUP, 1994 [1961], p. 302

→ What about H.L.A. Hart?

# HLA Hart's theory of law

## The idea of a social rule

- Habits vs Rules

## The idea of legal obligation

- Being obliged vs Having an obligation

## Law as the union of primary and secondary rules

- Legal systems vs Sets of rules

## The Rule(s) of Recognition

- Hart's rule of recognition vs Kelsen's basic norm

## The idea of legal validity

## The existence of a legal system

# Legal Positivism

➢ **Legal positivism as a general theory of law**

- Law is grounded in social facts (social facts thesis)
- The existence and content of law depend on its sources and not on its merits (sources thesis)
- Law and morality are separable, in the sense that we can conceptualise law without any reference to morality (separability thesis)

These are descriptive and conceptual claims about the nature of law

➢ **Legal positivism as a methodology**

- Legal theory is a morally neutral, descriptive enterprise

This is a meta-theoretical claim about the nature of legal theory

➢ **Legal positivism as a political theory of law**

- Moral criteria of legal validity are not morally desirable (even though they are conceptually possible), so morality and law should be kept separate

This is a prescriptive/normative version of the separability thesis